

SOTOMAYOR, J., dissenting

The public's interest in prosecution is transparent: a federal prosecutor herself acts on behalf of the United States. Even the majority acknowledges that the "[f]ederal criminal laws seek to redress 'a wrong to the public' as a whole, not just 'a wrong to the individual,'" *ante*, at 614 (quoting *Huntington v. Attrill*, 146 U. S. 657, 668 (1892)), such that there is "a compelling 'public interest in fair and effective law enforcement,'" *ante*, at 614 (quoting *Vance*, 591 U. S., at 808). Indeed, "our historic commitment to the rule of law" is "nowhere more profoundly manifest than in our view that . . . 'guilt shall not escape or innocence suffer.'" *Nixon*, 418 U. S., at 708–709 (quoting *Berger v. United States*, 295 U. S. 78, 88 (1935)).

The public interest in criminal prosecution is particularly strong with regard to officials who are granted some degree of civil immunity because of their duties. It is in those cases where the public can see that officials exercising power under public trust remain on equal footing with their fellow citizens under the criminal law. See, e. g., *O'Shea v. Littleton*, 414 U. S. 488, 503 (1974) ("[W]e have never held that the performance of the duties of judicial, legislative, or executive officers, requires or contemplates the immunization of otherwise criminal deprivations of constitutional rights"); *Dennis v. Sparks*, 449 U. S. 24, 31 (1980) ("[J]udicial immunity was not designed to insulate the judiciary from all aspects of public accountability. Judges are immune from § 1983 damages actions, but they are subject to criminal prosecutions as are other citizens"); *Imbler v. Pachtman*, 424 U. S. 409, 428–429 (1976) ("We emphasize that the [civil] immunity of prosecutors . . . does not leave the public powerless to deter misconduct or to punish that which occurs. This Court has never suggested that the policy considerations which compel civil immunity for certain governmental officials also place them beyond the reach of the criminal law. Even judges, cloaked with absolute civil immunity for centuries, could be punished criminally").